

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 863

Introduced by Prokop, 27.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to corrections; to require the Department of
- 2 Correctional Services to construct barriers around facilities near
- 3 residential properties as prescribed; and to define terms.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) For purposes of this section:

2 (a) Department means the Department of Correctional Services; and

3 (b) Facility means any facility operated by the department that is:

4 (i) Classified by the department as Maximum A, Maximum B, or Medium,

5 as such classifications existed on January 1, 2026; or

6 (ii) Substantially similar to a facility described in subdivision

7 (1)(b)(i) of this section that is constructed or operated after the

8 effective date of this act.

9 (2) If state-owned property on which a facility is located is within
10 one hundred yards of any residential property line, the department shall
11 construct a solid and continuous physical barrier at any such abutting
12 property line. Such barrier shall be designed to:

13 (a) Reduce noise and visual intrusion into adjoining residential
14 properties;

15 (b) Improve neighborhood safety and privacy; and

16 (c) Deter trespassing and unauthorized contact between inmates,
17 facility visitors, and residents.

18 (3) This section applies to facilities in existence on the effective
19 date of this act and to facilities constructed or operated on or after
20 the effective date of this act.